

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent*.

DOCKET NO. 25-07

Served: January 12, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

AMENDED SCHEDULING ORDER

On January 9, 2026, the parties filed a joint status report and proposed discovery schedule in accordance with the order granting Complainant's unopposed motion to file an amended complaint and subsequent order extending the deadline to file a joint status report. (Dkt. 21, 28, 29.)

The parties state that they have exchanged updated initial disclosures as required by 46 C.F.R. § 502.141(b). The parties further state that they exchanged some written discovery prior to filing the Amended Complaint and Answer, but that depositions have not yet commenced. The parties anticipate depositions of not more than five witnesses.

Despite that an extension of the deadline to issue an initial decision will be required by granting the requested relief, I find that the discovery schedule proposed by the parties is reasonable and satisfies the requirement in 46 C.F.R. § 502.141(g) that discovery must be completed within 150 days of the service of the answer on December 22, 2025, that is no later than May 21, 2026. (Dkt. 26.)

The parties are hereby **ORDERED** to follow this schedule:

February 16, 2026	Substantial completion of production of documents and electronically stored information (ESI)
February 16, 2026	Fact witness depositions may commence
February 18, 2026	Disclosure of Complainant's expert reports
February 27, 2026	Last day parties may serve supplemental discovery requests
March 6, 2026	Complete depositions of fact witnesses
March 19, 2026	Disclosure of Respondent's rebuttal expert reports

March 27, 2026	Expert witness depositions may commence
April 7, 2026	Close of all discovery
May 8, 2026	Complainant's brief, proposed findings of fact, and appendix
June 8, 2026	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
June 22, 2026	Complainant's reply brief and responses to proposed findings of fact

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

Parties must follow the instructions in the Initial Order, including but not limited to the requirements for briefs, appendices, and confidential information.

Any filing submitted without page numbers, including exhibits, may be rejected. Parties may be required to refile any documents that do not comply with the requirements in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email an electronic copy of required documents in a word-processing format to

the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.

MARY A. HERVEY -S

Digitally signed by MARY A.
HERVEY -S
Date: 2026.01.12 10:20:09 -05'00'

Mary Apostolakos Hervey
Administrative Law Judge